

HOUSE No. 4466

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, September 11, 2025.

The committee on the Judiciary, to whom were referred the petition (accompanied by bill, House, No. 1640) of Michael S. Day relative to the roles and responsibilities of the Victim and Witness Assistance Board and the petition (accompanied by bill, House, No. 1655) of Marjorie C. Decker relative to victim trust funds, reports recommending that the accompanying bill (House, No. 4466) ought to pass.

For the committee,

MICHAEL S. DAY.

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The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to modernize the roles and responsibilities of the victim and witness assistance board.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 3 of chapter 258B of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out the last paragraph and inserting in place
3 thereof the following paragraph:-

4 There shall be conspicuously posted in all courthouses and police stations a summary of
5 the rights afforded under this section devised and provided in digital or printed format by the
6 victim and witness assistance board, pursuant to section 4. The board shall further provide this
7 information in the top five languages spoken at home in the Commonwealth, other than English,
8 as provided by the most recent federal census data, and upon request, the board will respond, to
9 the extent possible, to any requests for additional language translations.

10 SECTION 2. Section 4 of said chapter 258B of the General Laws, as so appearing, is
11 hereby amended by striking out, in line 30, the word “him” and inserting in place thereof the
12 following word:- them.

SECTION 3. Said Section 4 of said chapter 258B of the General Laws, as so appearing, is hereby further amended by striking out paragraphs 4 and 5 and inserting in place thereof the following 2 paragraphs:-

The board shall establish, adopt, and maintain bylaws relative to the operation of internal governance.

In addition to the foregoing, the board shall:

(a) fund and support services that are available to victims across the commonwealth;

(b) provide informational material, professional development and community education opportunities for Massachusetts victim services providers, victims, allied professionals, medical facilities and law enforcement agencies including sharing information relative to the victim and witness rights and services established under this chapter;

(c) advocate for policy initiatives related to access and support for victims' rights and services including but not limited to funding;

(d) assume the management and administration of the Garden of Peace, a public memorial garden located on the plaza of 100 Cambridge street in the city of Boston to honor victims of homicide, to receive gifts or grants of money or property to assist the board in the maintenance and operation of the memorial and to establish an advisory committee which shall consist of interested residents appointed by the victim witness assistance board to provide advice to the board; and

(e) administer the SAFEPLAN advocacy program as established in Chapter 151 of the Acts of 1996.

SECTION 4. Section 6 of said chapter 258B of the General Laws, as so appearing, is hereby amended by striking, in line 2, the words:- the board.

SECTION 5. Section 66 of chapter 10 of the General Laws, as so appearing, is hereby amended by striking out the second sentence and inserting in place thereof the following sentence:-

The fund shall consist of proceeds of assets seized and forfeited pursuant to the third subclause of clause (1) of paragraph (a) of subsection (1) of section 24 of chapter 90, and all revenues received by the commonwealth from public and private sources as gifts, grants and donations, together with any interest or earnings accrued on such monies through investment or deposit.

SECTION 6. Section 66A of said chapter 10 of the General Laws, as so appearing, is hereby amended by striking out the second sentence and inserting in place thereof the following sentence:-

The fund shall consist of proceeds of assets seized and forfeited pursuant to section 55 and 56 of chapter 265, fines and assessments collected pursuant to sections 50, 51 and 54 of chapter 265 and section 107 of chapter 272 and all revenues received by the commonwealth from public and private sources as gifts, grants and donations, together with any interest or earnings accrued on such monies through investment or deposit.